IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an application for mandates in the matter of *Writ of Mandamus and Certiorari* under and in terms of Article 140 of the Constitution of the Democratic Socialist Republic of Sri Lanka.

C.A. (Writ) Application No: 0945/2025

Megha Dashini Weerasekera,
1018, Cambia Street,
Unit 308, Vancouver,
British Columbia, V6B 6J6, Canada.

And presently of

No. 32A/3/4, Alakeshwara Road,
Ethul Kotte, Kotte

Petitioner

Vs.

1. Chaminda Pathiraja
   Controller General, (Acting),
   Department of Immigration and Emigration,
   "Suhurupaya", Sri Subhuthipura Road,
   Battaramulla.

2. E.H.G. Prasanga,
   Deputy Controller,
   Citizenship Branch,
   Department of Immigration and Emigration,
   "Suhurupaya", Sri Subhuthipura Road,
   Battaramulla

3. D.W.R.B. Seneviratne,
   Secretary to the Ministry of Public
   Security and Parliamentary Affairs
   18th Floor,
   "Suhurupaya", Sri Subhuthipura Road
   Battaramulla

4. Tholka Mudiyanselage Marius Roshan
William Dissanayake,
1018, Cambia Street,
Unit 308, Vancouver,
British Columbia, V6B 6J6, Canada.

And presently of

No. 21,
Simon Hewavitharana Mawatha
Colombo 03.

Respondents.

Before : R. Gurusinghe, J.
&
Dr. S. Premachandra, J.

Counsel : Shantha Jayawardena with Niranjan Arulpragasam, Ashenka de Silva instructed by N R Paranagama
for the Petitioner

Dr. Peshan Gunaratne, SC
for the 1st to 3rd Respondents

M.U.M. Ali Sabry, PC with S. Zavahir and
Akila Aluthwatte instructed by D. Millewithanarachchi
For the 4th Respondent

Argued on : 18-12-2025

Decided on : 26-02-2026

JUDGMENT

R. Gurusinghe, J.

The Petitioner and the 4th Respondent were husband and wife, and are citizens of Sri Lanka. Both of them held Canadian permanent resident cards, and had resided in Canada for a certain period, and the child was born on

18-05-2024, while they were residing in Canada. The petitioner, the 4th respondent, and the minor child arrived in Sri Lanka on 07-10-2024. The petitioner states that the 4th respondent informed the petitioner that, he intends to visit the Department of Immigration and Emigration of Sri Lanka and on that basis, he took custody of the petitioner's passport, petitioner's Canadian permanent resident card (PR Card), the petitioner's National Identity Card and the minor child's passport, for the purpose of applying for the dual citizenship on behalf of the minor child. Later that same evening, a dispute arose between the petitioner and the 4th respondent.

It is further noted that there had been certain legal proceedings between the petitioner and the 4th respondent.

Petitioner filed this application seeking *inter alia* the following reliefs;

(d) Grant and issue a mandate in the nature of a Writ of Certiorari quashing the decision (if any) by the 1st and/or 2nd and/or 3rd respondents to take steps to proceed with the application for registration of birth of the minor child "K" (name of the child is omitted) in terms of Section 5(2) of the Citizenship Act as contemplated in letter dated 27.08.2025 marked P15.

(e) Grant and issue a mandate in the nature of a Writ of Certiorari quashing the decision by the 1st and/or 2nd and/or 3rd Respondents to register the birth (if already registered) of the minor child "K" under the Citizenship Act;

(f) Grant and issue a mandate in the nature of a Writ of Certiorari quashing the certificate of citizenship (if already issued) issued to the minor child "K" in terms of Section 6A of the Citizenship Act.

(g) Grant and issue a mandate in the nature of a Writ of Certiorari quashing the Visa Exemption for a dual citizen/citizen issued to the minor child "K".

(h) Grant and issue a mandate in the nature of a Writ of Mandamus directing the 1st and/or 2nd Respondents to take necessary action against the 4th Respondent for committing an offence under Section 25 of the Citizenship Act by knowingly making false statements and/or knowingly submitting false material to wilfully mislead the Department of Immigration and Emigration.

The 4th respondent filed his limited objections to the petitioner's application on 17-11-2025, whilst the 1st to 3rd respondents filed their limited

objections on 10-12-2025. Thereafter, the petitioner tendered a counter affidavit on 16-12-2025. When this matter was supported on 18-12-2025 by the petitioner for the issuance of an interim order, all parties agreed to dispose of the entire matter on the strength of the submission made by the parties on that date, considering that the argument stage had concluded.

The petitioner's main grievances pertaining to the citizenship process are that:

1) The 4th respondent submitted an application for registration of the child's birth under Section 5 (2) of the Citizenship Act, without her consent, using stolen documents (her passport and PR Card).

2) At the time of the application on 21-10-2024, the prerequisite Consular Birth Certificate, which was issued on 08-01-2025, did not exist, rendering the application incomplete and illegal.

3) The 1st to 3rd respondents failed to afford her a hearing and acted arbitrarily by giving her ten days to produce a Court Order, and to proceed with processing the application, despite her objections.

4) That conferring Sri Lanka Citizenship is not in the best interest of the child, who is a Canadian Citizen and whose habitual residence is Canada, as it would facilitate her being trapped in Sri Lanka.

Therefore, the petitioner seeks a writ to quash the decision to process the application, the subsequent registration of birth, the issuance of the certificate of citizenship, and the associated visa exemption.

The 4th respondent's position is briefly as follows:

1) Both parents the petitioner and the 4th respondent are Sri Lankan citizens. Under section 5(2) of the Citizenship Act, a person born outside Sri Lanka to a citizen parent is entitled to Sri Lankan citizenship by descent, provided that the birth is registered in the prescribed manner within one year. This is a right conferred by law.

2) The birth was duly registered by a declaration under Section 24 of the Births and Deaths Registration Act. The Consular Birth Certificate was subsequently issued on 08-01-2025. The application under Section 5 (2) was thereafter perfected. The certificate of citizenship (4R4) was lawfully issued on or about 18-09-2025 pursuant to the

duty imposed on the controller by Section 6A (2 and 3) of the Citizenship Act.

3) The 1st to 3rd respondents' role was purely ministerial. Upon verification of the citizenship of the parents and the registration of birth, they had no discretion to refuse the certificate. Their function was to confirm a pre-existing legal status.

4) A Writ does not lie to challenge the ministerial act. What the petitioner challenged was not a true 'decision' amenable to certiorari. The course of action is extinguished as the certificate has been issued; the petition is academic.

5) The petition is a collateral attack within a bitter matrimonial custody battle. The petitioner has wilfully suppressed material facts, including the Canadian Court's refusal to assume jurisdiction under the Hague Convention (4R5), which notably did not make a finding of habitual residence in Canada.

Now, I proceed to consider the facts pleaded by both parties together with the applicable law. The petitioner has instituted the present application before this court on 24-09-2025. According to documents submitted by the Controller General of the Department of Immigration and Emigration, the 4th respondent paid the prescribed fee and registered the birth of the minor child under the provisions of the Citizenship Act No. 18 of 1948, on 21-10-2024. The birth was duly registered, and the relevant documents were forwarded to the High Commissioner of Sri Lanka in Toronto by letter dated 15-10-2024, for further action pending the issuance of a Consular Birth Certificate. A copy of the said letter addressed to the High Commissioner of Sri Lanka in Toronto is produced, marked "1R2".

In response to the petitioner's request, the 2nd respondent directed the petitioner to obtain a Court Order suspending further proceedings in the application of the 4th respondent within 10 days. The copy of the said letter was produced by the 1st respondent, marked as "1R3", and the same was produced by the petitioner, marked "P15". The 1st respondent further stated that they had awarded an additional 10 days upon the petitioner's verbal request to seek judicial redress in respect of the matter. In the absence of the Court Order, the Officers of the Department of Immigration and Emigration Controller have printed the Certificate of Registration of Birth for the child, and it was dispatched on 18-09-2025 to the 4th respondent via registered post. A copy of the Certificate of Registration of Birth outside Sri

Lanka, issued under Section 5(2) of the Citizenship Act, is produced by the 1st respondent, marked 1R5.

Section 5 (2) of the Citizenship Act is as follows:

"5(2) Subject to the other provisions of this Part, a person born outside Sri Lanka on or after the appointed date shall have the status of a citizen of Sri Lanka if at the time of his birth either of his parent is or was a citizen of Sri Lanka and if, within one year from the date of birth, or within such further period as the Minister may for good cause allow, the birth is registered in the prescribed manner

> *(a) at the office of a consular officer of Sri Lanka in the country of birth, or*
>
> *(b) at the office of the Minister in Sri Lanka."*

The petitioner's main grievance is that the application for Registration of a minor child under Section 5 (2) of the Act was made without the petitioner's (mother's) consent. However, the Act contains no such provision requiring the consent of both parents for the submission of an Application under Section 5(2). In terms of the said provision, application for the issuance of a certificate may be submitted by either the father or the mother (or even by a third party who can verify the requisite facts in accordance with the provisions of Section 5(2) of the Act. The Petitioner produced a copy of the said application, marked P9. The instructions page on P9 stipulated the requirement of the applicant's signature. There is no obligation for the mother to sign or approve the application, as only the applicant's signature is mandated.

As shown by the 1st respondent, all necessary documents have been produced by the 4th respondent. The petitioner alleged that the 4th respondent unlawfully retained those documents. It is to be noted that the petitioner herself stated that the 4th respondent informed the petitioner that he intended to visit the Department of Immigration and Emigration of Sri Lanka, and took custody of the petitioner's passport, petitioner's PR Card, National Identity Card and the infant's passport for the purpose of applying for dual citizenship for the child. By that specific date, the petitioner and the 4th respondent were husband and wife.

The 4th respondent, as the father of the minor, was entitled to make the application for registration of birth outside Sri Lanka. The duty of the 1st

and 2nd Respondents was limited to verifying the documents, establishing the citizenship of the parents and the registration of the birth.

The 4th respondent submitted his National Identity Card, passport, the Declaration of Birth, after three months, pursuant to Section 24 of the Births and Deaths Registration Act, he also submitted the receipt of payment for the registration of the application letter dated 15-10-2024 communicating the acknowledgement of declaration of birth and to proceed with the Registration of Birth (P8), the citizenship payment receipt dated 21-10-2024 and a consular birth certificate dated 08-01-2025 (4R3). Any person may make an application under Section 24 of the Births and Deaths Registration Act.

Section 24(1) of the Births and Deaths Registration Act is as follows;

> 24(1) In any case where the birth of any person is not registered within the period of three months immediately succeeding the date of the birth—
>
> (*a*) the Registrar-General or any District Registrar or Registrar may, by notice in writing, direct any person who is required by this Act to give information concerning the birth to attend personally at the office of the Registrar-General or of a District Registrar within such time, not being less than seven days after the receipt of the notice, as may be specified in the notice, and to make before that officer a declaration of the particulars required to be registered under this Act in respect of the birth; or
>
> (*b*) any such person or <u>any other person interested</u> may of his own motion attend personally at the office of the Registrar-General or of any District Registrar and make before such officer a declaration of the particulars required to be registered concerning the birth.

The minor child satisfied all the requirements prescribed under Section 5(2) of the Citizenship Act. The 4th respondent, as the father, was entitled to submit the application. Thereafter, the 1st and 2nd respondents' duty was to verify the documents submitted to establish the citizenship of the parents and to register the birth. Once all requisite documents have been submitted to the 1st and 2nd respondents and verified, they are obliged to register the birth. Their function in this regard is purely ministerial, leaving no room for judgment or discretion. Further, the petitioner has not averred in the petition that the respondents had violated any provision of the Citizenship

Act, which would justify the quashing of P15 by writ of certiorari. Ministerial functions that involve mandatory duties prescribed by law, without discretionary power, are not amenable to writ jurisdiction.

In Gamini Atukorale v. Dayananda Dissanayake, Commissioner of Elections and Others (1998) 3 Sri LR 206:

The Court held that a ministerial function, which is the performance of a duty as prescribed by law and not a discretionary function, is not amenable to the prerogative writ jurisdiction.

Wijetunga J quoted the following passage.

> *Jain & Jain, Principles of Administrative Law, 4th Ed., states at page 325 that: functions dischargeable by the administration may either be ministerial or discretionary. A ministerial function is one where the relevant law prescribes the duty to be performed by the concerned authority in certain and specific terms leaving nothing to the discretion or judgment of the authority. It does not involve investigation into disputed facts or making of choices. The authority concerned acts in strict obedience to the law which imposes on it a simple and definite duty in respect of which it has no choice.*

The certificate of birth registration outside Sri Lanka under the Citizenship Act was issued on 18-09-2025, prior to the filing of this application in this Court. This application was filed on 24-09-2025. Hence, the reliefs prayed for by the petitioner are futile.

Section 20 sub-section (2) of the Citizenship Act as Amended is as follows:

20(2) Where a person is a citizen of Ceylon or Sri Lanka by descent and that person, by operation of law, is at the time of his birth or becomes thereafter, also a citizen of any other country, that person shall

(a) on the 31st day of December, 1952, or

(b) on the day immediately succeeding the date of the expiration of a period of twelve months from the date on which he so becomes a citizen of that other country, or

(c) on the day on which he attains the age of twenty-two years, whichever day is in his case the latest, cease to be

> a citizen of Sri Lanka, unless before that day he renounces citizenship of that other country in accordance with the law therein in force in that behalf and notifies such renunciation to a prescribed officer.

A careful perusal of the aforementioned provisions made it clear that no prejudice would be caused to the minor child by conferring citizenship by birth as provided above. In fact, it does not deprive the minor child of Canadian citizenship but provides the privilege of residing in Sri Lanka without requiring a Visa. The minor child retains the right to decide whether to retain Canadian citizenship or Sri Lankan citizenship. Alternatively, she may retain Canadian citizenship while applying for Sri Lankan citizenship. Therefore, no prejudice would be caused to the petitioner or minor child by granting the registration.

The petitioner has failed to establish a substantial legal right to invoke a Writ of Mandamus. The 1st to 3rd respondents have acted within the law in the discharge of their duties. Therefore, there is no reason to issue writs as pleaded by the petitioner. Accordingly, we proceed to dismiss this Writ Application. We make no order for costs.

Judge of the Court of Appeal

Dr. S. Premachandra J.

I agree.

Judge of the Court of Appeal.